

26LBCV00152 26LBCV00152

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26LBCV00152 Hearing Date: August 13, 2026 Dept: S27

1. Background

Facts

On January 20, 2026, Plaintiff Bernice

Hernandez filed this action against Defendants Golden Horn Transportation Inc., Amazon.com Services, LLC., Amazon Logistics, Inc., Velocity Trust LTD., and Ghatih Ahmed Aldhamdani aka Alex Kayak for negligence arising from a motor vehicle collision.

On June 23, 2026, Proposed Intervenor DB Insurance Company LTD. filed this motion for leave to intervene.

On July 28, 2026, Amazon.com Services, LLC and Amazon Logistics, Inc ("Amazon"), jointly filed Opposition to this motion.

On August 6, 2026, Proposed Intervenor DB Insurance Company LTD. filed Reply to Opposition.

2. Leave to Intervene

Code of Civil Procedure Section 387 states in part:

(c) A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the

grounds upon which intervention rests.

(d) (1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:

(A) A provision of law confers an unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.

(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.

(Code Civ. Proc., § 387(c)-(d).)

"The trial court has discretion to permit a nonparty to intervene where: (1) the proper procedures have been followed, (2) the nonparty has a direct and immediate interest in the action, (3) the intervention will not enlarge the issues in the litigation, and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action...." (Chavez v. Netflix (2008) 162 Cal.App.4th 43, 51.)

"Because the decision whether to allow intervention is best determined based on the particular facts in each case, it is generally left to the sound discretion of the trial court." (City and County of San Francisco v. State of Cal. (2005) 128 Cal.App.4th 1030, 1036. Accord, Hinton v. Beck (2009) 176 Cal.App.4th 1378, 1382 ["Intervention pursuant to section 387, subdivision (a) is not a matter of right, but is discretionary with the trial

court.”].)

Proposed Intervenor DB Insurance seeks to intervene on the following basis. DB Insurance is the insurer of Defendants Golden Horn Transportation Inc., and Ghaith Ahmed Alhamadani aka Alex Kayak (“Defendants”) (Orlando Decl. ¶ 7.) DB Insurance states it has a direct and immediate interest in this litigation because Defendants may be liable for judgment entered in this action, and DB Insurance’s interests may be affected by the proceeding and outcome. (Id)

Amazon opposes this motion for several reasons. First, Amazon argues that DB Insurance lacks sufficient interest in this litigation because it completely denied coverage (see Declaration of Darrion Jackson-Laws, Exhibit A). Second, Amazon asserts that DB Insurance’s intervention would improperly enlarge the issues. Finally, Amazon contends that DB Insurance cannot disclaim its obligations to its insureds while simultaneously claiming a protectable interest (Opposition p. 5).

On reply, DB Insurance argues that intervention is mandatory because it may be obligated to satisfy a judgment under the MCS-90 endorsement. Second, DB Insurance asserts that it meets all elements required for mandatory intervention.

When an action asserting a claim for bodily injury or property damage is brought against an insured, and the insured tenders the defense to the insurer, there are three possible positions the insurer can take towards the request for coverage and a defense. An insurer can (1) admit coverage and provide a defense; (2) deny coverage and refuse to provide a defense; or (3) provide a defense under a reservation of rights to contest coverage. (Gray v. Begley (2010) 182 Cal.App.4th 1509)

If the insurer denies coverage and refuses to provide a defense, the insurer “does not have a direct interest in the litigation between the plaintiff and the insured to warrant intervention. The rationale behind this rule is that by its denial, the insurer has lost its right to control the litigation.” (Hinton v. Beck (2009) 176 Cal.App.4th 1378)

Here, DB Insurance denied coverage and refused to provide a defense. (Opposition, Jackson-Laws Decl., ¶ 4, Exhibit

B – 001.) As a result, DB Insurance has lost its right to control the litigation.

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3. Conclusion

Based on the forgoing, the motion for leave to intervene is denied.